

**Amendment to Justification Review Document CEHNC-23-0019-A1
For Other than Full and Open Competition - FAR 6.302-1**

Program/Equipment: Utility Energy Services Contract (UESC), 63rd U.S. Army Reserve Readiness Division, Locations: Northern California (Bakersfield, Marina, Fresno, BT Collins, **Concord**, and Mountain View), Southern California (Patton Hall-Bell, El Monte, Garden Grove, Los Angeles, Costa Mesa, Riverside, Bell, and Tustin), and Arizona/Nevada (Barnes Hall, Mesa, Glendale, Taylor Hall, Nellis, and Sloan).

Authority: 10 U.S.C. 3204(a)(1) as implemented by Federal Acquisition Regulation (FAR) 6.302-1 "Only One Responsible Source and No Other Supplies or Services Will Satisfy Agency Requirements."

Period of Performance (POP)/Delivery Date: 20 November 2023 – 19 November 2048 (three task orders (TOs) with the same PoP).

Amount: [REDACTED]

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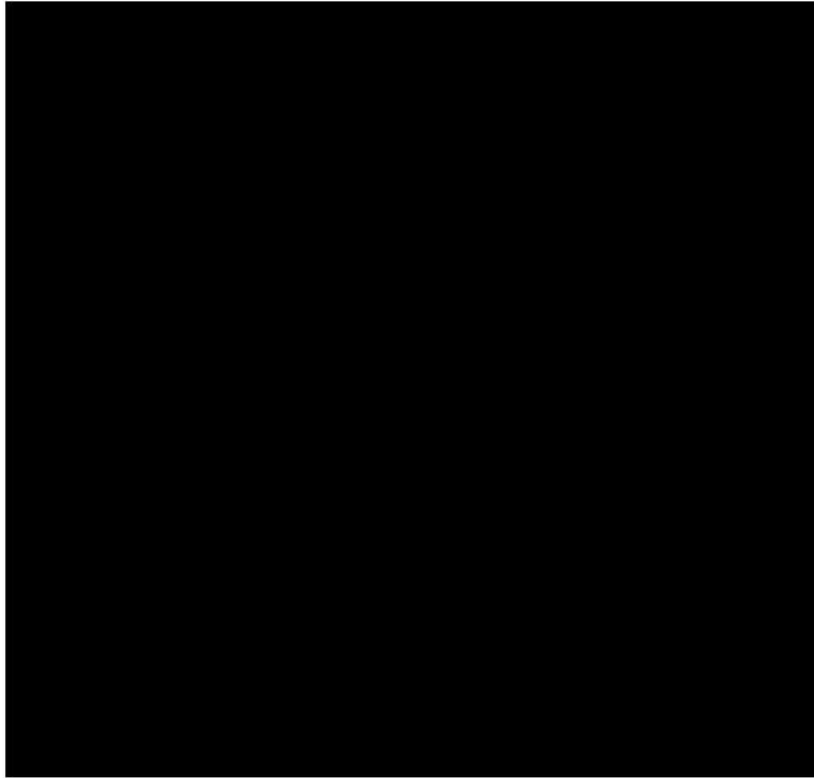
Technical: [REDACTED]

Requirements: [REDACTED]

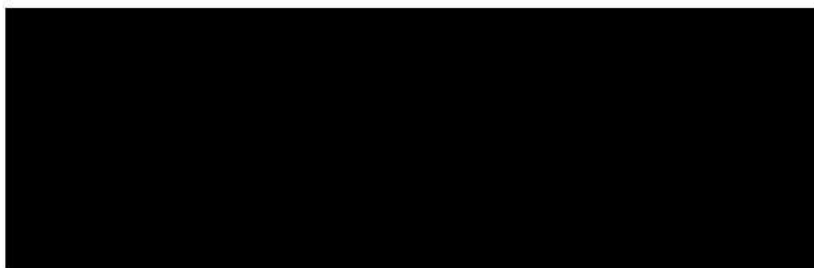
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POC: Lisa L. Steenburn, 256-895-5236

Center/District Reviews

I have reviewed this justification and find it adequate to support other than full and open competition.

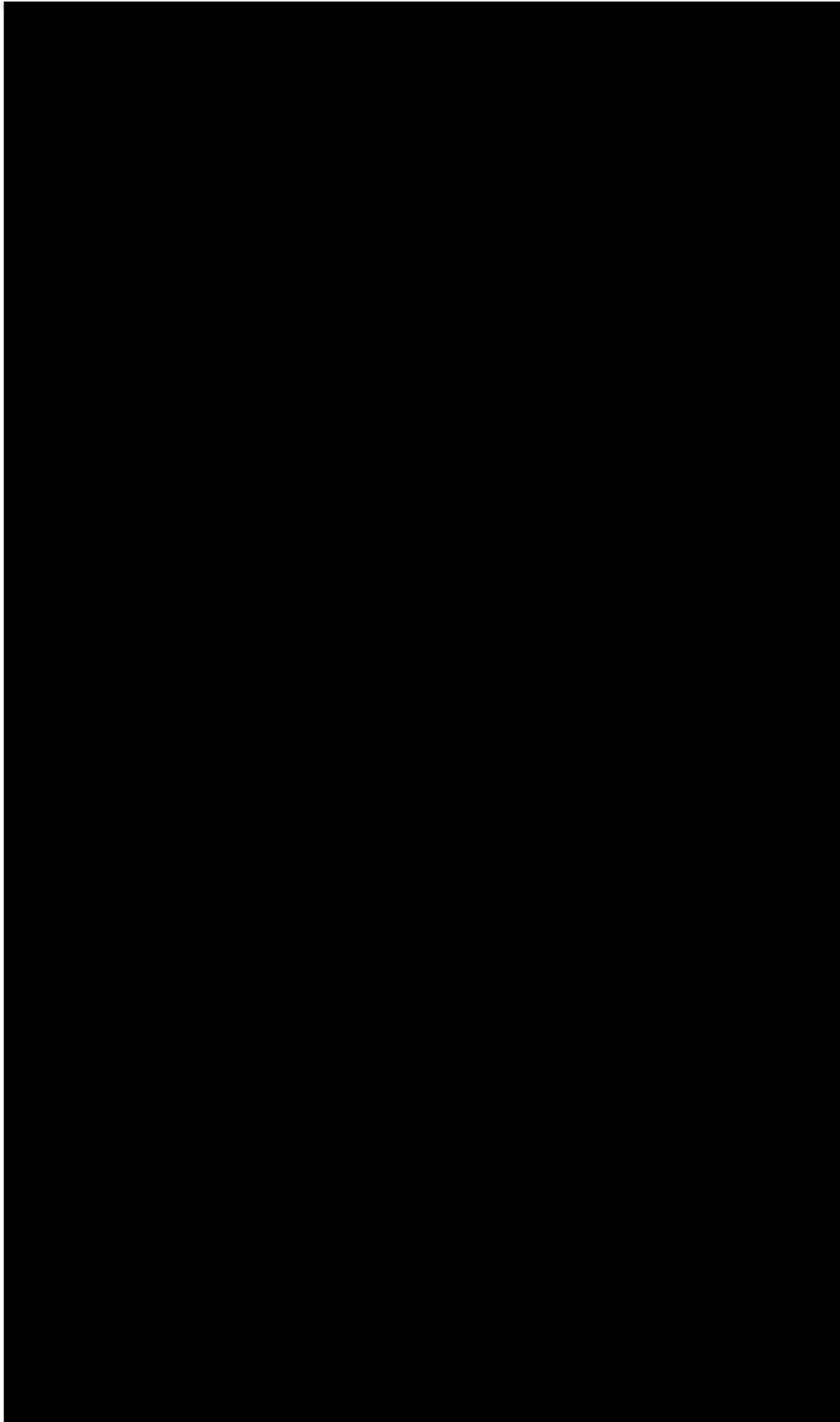


LISA L. STEENBURN
Procuring Contracting Officer
256-895-1866



SCO-C&L and Headquarters Reviews

The following signatures indicate concurrence with the contents of this document.



Amendment to Justification and Approval
FAR 6.301-2 Other than Full and Open Competition

1. **Contracting Activity:** U.S. Army Corps of Engineers (USACE), Huntsville Engineering and Support Center (CEHNC), 300 Secured Gateway SW, Redstone Arsenal, AL 35808 ~~475 Quality Circle, Huntsville, AL 35806.~~
2. **Description of Action:** This J&A amendment supports an increase of [REDACTED] to include a sixth site at Concord, CA due to an inadvertent omission from the original approved J&A.

This Justification and Approval (J&A) supports a programmatic request for CEHNC to execute three Task Orders (TOs) for Utility Energy Services Contracts (UESC) pursuant to 42 United States Code (U.S.C.) § 8256, 10 U.S.C. § 2913, and 10 U.S.C. § 2866, on a sole source basis. Each TO will be against the General Services Administration (GSA) Areawide Contracts (AWC) for utility services. The TOs will implement energy conservation measures (ECMs) with a servicing utility for the design and implementation of life cycle cost-effective, energy conservation solutions that will meet the unique needs of the 63rd U.S. Army Reserve Readiness Division (USARRD) in Northern California (Bakersfield, Marina, Fresno, BT Collins, **Concord**, and Mountain View), Southern California (Patton Hall-Bell, El Monte, Garden Grove, Los Angeles, Costa Mesa, Riverside, Bell, and Tustin), and Arizona/Nevada (Barnes Hall, Mesa, Glendale, Taylor Hall, Nellis, and Sloan). Additionally, Defense Acquisition Regulation Supplement (DFARS) 241.103(2), Statutory and Delegated Authority, directs that the Department of Defense (DoD) may enter into energy savings contract under 10 U.S.C. § 2913 for a period not to exceed 25 years. Prior to implementation of ECMs, the selected utility will deliver to the customer a Preliminary Assessment (PA), and then a detailed Feasibility Study with a priced proposal which states the implementation and financing cost. UESCs are commercial performance-based services. The period of performance (PoP) for each UESC shall not exceed the statutory limit of 25 years. The approximate PoP for these actions is expected to be ~~20 November 2023 through 19 November 2048~~ **29 May 2025 through 28 May 2050** and shall not exceed 25 years. The estimated amount of these projects is [REDACTED]

[REDACTED] If approved, these actions will result in separate TOs issued to Pacific Gas & Electric (PG&E) for Northern CA, Southern California Gas Company (SoCalGas) for Southern California, and Southwest Gas Corporation (SWGC) for Arizona and Nevada.

3. **Description of Supplies/Services:** This acquisition is for a UESC under 42 U.S.C. § 8256, 10 U.S.C. § 2913, and 10 U.S.C. § 2866, for energy management services. The ECMs that will be evaluated during the preliminary assessment process are geothermal heat pumps, retro-commissioning, photovoltaic solar array, water conservation measures including water storage, microgrids, and heating, ventilation, and air conditioning system upgrades.

The Energy Policy Act of 1992 established utility incentive programs pursuant to 42 U.S.C. § 8256(c), encouraging agencies to enter into negotiations with electric, water, and gas utilities to design cost-effective demand management and conservation incentive programs to address the unique needs of facilities utilized by such agencies. The selected utility will usually obtain third-party financing for the full amount of the project and experience no cash flow issues during design and implementation. The implementation phase precedes the service or performance phase, and utilities are required to obtain performance and payment

bonds prior to implementation. After the selected utility provider installs the ECMs per applicable design and construction standards, performance period services are performed, such as performance assurance, measurement and verification, operations, maintenance, repair, and replacement, which typically last the length of the financing. The Government is not required to make payments on financed projects until they are commissioned and accepted. Life cycle effectiveness is considered achievable when the total cost of upgraded or replaced energy systems can be recovered over the expected life of the systems through the generated savings. The Rough Order of Magnitude (ROM) estimate for these three projects is based on the installation of the designated ECMs and from historical values of other UESC projects. There could conceivably be more ECMs that could and likely will be identified in the PA phase. After review of the historical data from the Program's previous task order awards, HNC's technical lead estimated the ROM is \$20.750M for each UESC project inclusive of the ECMs, and any other items found as part of the PA. Table 1 below depicts the typical ECMs generally performed for each project and the associated estimates.

Table 1: Typical ECMs and ROM Estimates

ECMs	ROM Estimate
Geothermal Heat Pumps	
PV Solar/Battery/Microgrid	
Water Conservation and Resilience Storage	
Retro-commissioning	
HVAC upgrades	
Total	

4. **Authority Cited:** 10 U.S.C. § 3204(a)(1); FAR 6.302-1 "Only One Responsible Source and No Other Supplies or Services Will Satisfy Agency Requirements." Use of this authority under these circumstances is expressly recognized as appropriate in FAR 6.302-1(b)(3), where it states, "when acquiring utility services, circumstances may dictate that only one supplier can furnish the service."

5. **Reason for Authority Cited:**

- a. **Background:** The UESC program negotiates contracts with local electric, gas and water utility companies that enable the utility companies to provide federal agency customers with comprehensive energy and water efficiency improvements and demand reduction services. UESC projects can encompass a broad range of ECM's, including system upgrades and recommissioning, deep retrofit projects, renewable energy, cogeneration plants and microgrids. UESC gives federal customers the flexibility to specifically tailor a project to a customer's energy needs and financing strategies. A UESC contract is a method whereby a selected local electric, gas or water utility company assesses the energy savings opportunities, fronts the capital costs, and designs and installs the equipment in the project. When project financing is required, the utility company is paid from the resulting savings. Project development and implementation costs can be fully or partially financed or be completely paid for upon project acceptance.

In May 2024, CEHNC was asked by the 63rd USARRD to add a sixth site to this requirement in Concord, CA, due to the installation inadvertently leaving it off the request. Market Research began immediately (detailed below in paragraph 8) to identify eligible and interested sources of competition. Only PG&E was both eligible and

interested, resulting in this amendment.

- b. Justification: FAR 41.201(d)(1) Policy, implements Section 8093 of the Department of Defense Appropriations Act of 1988, Pub. L. 100-202, which mandates the United States purchase electrical utilities services in a manner not inconsistent with state regulation, including electric utility franchises or service territories established pursuant to state statute, state regulation, or state-approved territorial agreements. The California Public Utilities Commission (CPUC) and the commissions in Arizona and Nevada regulate utilities throughout their states by geographical boundaries to single providers as authorized by state statutes. Utilities that wish to expand their allocated territory must request to be permitted to do so with their respective state's Public Utility Commission. This process can take anywhere from nine months to a year, or longer. The Contracting Officer confirmed again on 22 September 2023 that the relevant service territories for each of these three zones has not changed since the initial market research for these projects.
- i. Northern California locations have been allocated by CPUC to PG&E as the sole provider of Gas utilities in the geographic area for Bakersfield, Marina, Fresno, BT Collins, **Concord** and Mountain View locations. Market research completed on 14 March 2023, detailed below in paragraph 8, verified PG&E to be the only servicing utility for these locations who perform UESCs. Based on the initial market research conducted 16 March 2023, and the sources sought posted in March 2024, just for the Concord site, PG&E is the only interested utility provider to perform a UESC project in Northern California. **If Concord site is not included, the USARRD would have to go through the Program Objective Memorandum (POM) process that outlines resource allocations needed for the requirement and wait for appropriated funding to be allocated to allow for the energy resilience infrastructure improvements. It was anticipated that the needed improvements at the Concord site would be included but was inadvertently omitted with the initial customer request for a third-party financed project.**
- ii. Southern California locations have been allocated by CPUC to SoCalGas as the sole provider of Gas utilities in the geographic area for Patton Hall-Bell, El Monte, Garden Grove, Los Angeles, Costa Mesa, Riverside, Bell, and Tustin locations. Market research completed on 14 March 2023 verified SoCalGas to be the only servicing utility for these locations who perform UESCs.
- iii. Arizona & Nevada locations have been found through market research to be serviced by SWGC as the sole provider of Gas utilities to the geographic area for Barnes Hall, Mesa, Glendale, Taylor Hall, Nellis, and Sloan locations. Market research completed on 14 March 2023 verified SWGC to be the only servicing utility for these locations who perform UESCs. The revalidation for Arizona was completed by phone call on 21 September 2023, with the Public Utilities Consumer Analyst II, along with a follow up email of the Territorial Map for SWGC in Arizona. Revalidation for the Nevada locations has been completed with conversing on a phone call with the Assistant General Counsel with the Public Utility Commission of Nevada on 20 September 2023, in which he validated SWGC as the sole provider for Natural Gas in the

Nevada locations and provided the Service Territory Map links by email. Both Arizona and Nevada have not had any changes since the Market Research was concluded this past March.

- c. Alternatives: Consideration was given to issuing multiple single site UESCs, but this solution was cost restrictive based on the fixed acquisition costs for procurement and administration which is estimated to be approximately [REDACTED] broken out with 22% for Program Management, 20% for Engineering Directorate, 8% for Safety, 35% Contracting, and 15% Miscellaneous. There are approximately 19 sites being considered for these three UESC actions, which means the Government would potentially have to fund an additional [REDACTED] in CEHNC's labor [(19 sites – 3 sites) x [REDACTED] Market research revealed that PG&E, SoCalGas and SWGC were the only utility providers eligible to and interested in performing a UESC at each location.

In addition, to the acquisition and administration costs, executing multiple single site UESCs would negatively impact smaller sites with limited funding for ECM implementation due to the inability to secure third party financing. In other words, third party financiers are less likely to invest in singular ECMs for individual sites. Grouping the sites increases the ability to obtain financing for multiple ECMs by sharing high energy savings opportunities for third party financier payments without investing Government funds up front. Pursuing the multiple single site alternative would cause the customer to lose the ability to leverage these big savings contributors. As a result, this alternative is not in the Government's best interest when compared to the proposed regional UESC solution.

Consideration was given for issuing a public solicitation for the Concord site, but Market Research conducted in March 2024 and updated in July 2024, identified there would be no expectation to have more than one servicing utility respond. Market Research also revealed that PG&E is the only utility provider interested in performing a UESC at the Concord location (See section 8, Market Research for additional details).

- d. Impact: If this J&A is not approved and the services are not performed, the 63rd Army Reserves would be unable to implement these ECMs using a third party financed shared energy savings contract and would be required to reallocate appropriated program funding and resources to cover the full capital investment needed for each implementation. The 63rd USARRD has stated they would have to look at doing smaller portions of upgrades individually after obtaining additional funding and most likely would not pursue doing a UESC for each site. Additionally, the Reserves would not benefit from cost savings available through implementation of ECMs associated with the UESC. The purpose of doing these upgrades with a UESC is to leverage multiple sites, grouped together, with a third party to finance ECM implementation over longer periods of time allowing the savings to repay the cost of upgrades.

If this J&A amendment is not approved and the services are not performed, the 63rd US Army Readiness Reserves would be unable to implement these ECMs using a UESC and third-party financing, at Concord; therefore, they would have to wait until sufficient funding was allocated to directly fund the requirement using a different

contract mechanism and not an energy contract. The site at Concord is a small reserve site with a ROM of [REDACTED] in potential savings or approximately [REDACTED] per year of savings. This project cannot proceed as a standalone UESC project and be life cycle cost effective within 25 years. Government acquisition costs and oversight alone for a UESC project over its' lifecycle is approximately [REDACTED]. This would exceed the initial costs of the Concord site and would not be fiscally beneficial to the Government. As a result, inclusion with this Task Order presents the best method for realizing savings and leveraging third-party financing while improving aging infrastructure.

6. **Efforts to Obtain Competition:** In an effort to obtain competition, CEHNC engaged with industry using several techniques which included a Sources Sought notice on SAM.gov, Letters of Interest (LOI) and communication with known utility providers provided by the 63rd USARRD via email/phone, and phone calls to any utility within the local area. The market research (detailed below in Section 8) indicates obtaining competition under this proposed UESC acquisition is possible even with the CPUC mandate for utility providers for the noted locations in northern California and southern California, but market research proved to show no interested parties beyond PG&E and SoCalGas. Even though other utility companies provide services to the locations, they either did not have the capability or interest to perform a UESC. Reference Section 8, Market Research, below for more detailed efforts to obtain competition.

- a. **Effective Competition.** To the extent that any competition under the proposed acquisition may be possible, it will be among potential subcontractors and CEHNC will concentrate its efforts to obtain subcontractor competition.
- b. **Subcontracting Competition.** In accordance with FAR Subpart 19.7, Small Business Subcontracting Program, DFARS 252.219-7003, Small Business Subcontracting Plan (SBSP) and FAR Clause 52.219-9, Small Business Subcontracting Plan, are required in solicitations and contracts that offer subcontracting possibilities and which expect to exceed [REDACTED] SBSP compliance for each of the providers' annual submission of its commercial SBSP showing the total subcontracted dollars for the GSA AWC (PG&E GSA AWC number GS-00P-14-BSD-1137, SoCalGas GSA AWC number GS-00P-14-BSD-1054 and SWGC GSA AWC number GS-00P-13-BSD-1002). PG&E, SoCalGas, and SWGC will also be required to submit a Standard Form 294, Subcontracting Report for Individual Contracts to CEHNC demonstrating efforts to utilize small businesses and the various socio-economic subcategories under their respective TOs.

This J&A amendment supports adding the Concord site to the 63rd USARRD UESC project already under development, adding approximately [REDACTED] to the Northern California region, increasing the approximate total for this region to [REDACTED] which will in turn require PG&E to submit a Small Business Subcontracting Plan (SBSP). Once approved, the SBSP can be included as a deliverable in the Notice to Proceed (NTP) to Investment Grade Audit (IGA) amendment when the Concord site is added.

7. **Actions to Increase Competition:** PG&E, SoCalGas, and SWGC are the only utility providers that perform UESCs at the locations captured above. Market research will remain ongoing to continually review the market for new utility providers who perform UESCs and are approved by the federal regulatory commissions and state and local commissions.

8. **Market Research:** Market research was conducted from 23 February 2023 to 14 March 2023. The market research detailed below depicts the efforts related to vetting each eligible utility at each site to determine their interest in performing a UESC. PG&E was the only eligible servicing utility in Northern California locations, SoCalGas was the only eligible servicing utility in Southern California locations and SWGC was the only eligible servicing utility in Arizona/Nevada locations interested in performing a UESC.

- a. In order to be eligible to perform a UESC, the utility has to be an existing service provider at the site. There are multiple utility providers (gas, electric and water) serving each of these locations for northern and southern California, Arizona, and Nevada who would be eligible to perform UESCs at those individual sites. Each of the servicing electric, water, and gas utility providers were contacted directly through LOIs, direct phone calls, or emails. In addition, a Sources Sought announcement was posted through SAM.gov between 23 February 2023 and 14 March 2023. The water utilities at each of these sites varies by locality. None of the servicing water utility providers responded to the Sources Sought announcement or returned any response to the LOI submitted to them directly. There was only one servicing utility at each grouped location that responded with interest in performing a UESC at the individual sites (PG&E, SoCalGas or SWGC). There were non-servicing utilities who replied to the Sources Sought that stated they would like to be a subcontractor to the prime contractor that does obtain the UESC. One hopeful utility was Southern California Edison, but they made it clear that they have discontinued performance, or efforts, to obtain a UESC.

There were 12 Electric Utilities, 4 Natural Gas Utilities, and 13 Water Utilities contact in the California locations for a total of 13 site locations. In Nevada 4 Electric Utilities, 3 Natural Gas Utilities and 5 Water Utilities were contacted for 3 site locations, and in Arizona there are 3 Electric Utilities, 3 Natural Gas Utilities, and 3 Water Utilities contacted. Through MR it was determined only three Utility providers for the three grouped locations were a servicing utility, Northern CA is PG&E, Southern CA is SoCalGas, and Nevada & Arizona is SWGC. Review the attached Market Research report dated 27 March 2023 and Market Research Spreadsheet for additional details on all of the firms that responded to the market research efforts.

PG&E is the servicing utility company for Bakersfield, Marina, Fresno, BT Collins, and Mountain View locations. There are different electric service utility providers serving each of these five sites, however, there is not one electric service utility supplier serving all the sites. Each of these electric service utility providers were contacted directly through LOI, direct phone calls, or emails. None of the servicing electric utility providers responded with interest in performing a UESC themselves at any of the individual sites, nor did they respond to the Sources Sought announcement. PG&E is the servicing natural gas and electric utility company for four of the five sites. BT Collins site is serviced by PG&E for gas utilities and by Sacramento Municipal Utility District (SMUD) for electric utilities, but SMUD provided no interest in performing a UESC. SMUD is a Community Choice Aggregator which allows cities and counties to generate electricity for residents and business within their communities. PG&E partners with SMUD to deliver the electricity through its transmission and distribution system.

SoCalGas is the servicing utility company for Patton Hall-Bell, El Monte, Garden Grove, Los Angeles, Costa Mesa, Riverside, Bell, and Tustin locations. SoCalGas is the

servicing natural gas utility company for all nine sites. None of the servicing electric utility providers responded with interest in performing a UESC at any of the individual sites but had expressed interest in being a subcontractor for a UESC provider. SoCalGas has indicated high interest in performing UESCs for each of these sites.

SWGC is the servicing natural gas utility company for Taylor Hall, Barnes Hall, Mesa, Nellis and Glendale. The Nellis site is located on Nellis Air Force Base (AFB), therefore, electric, and natural gas is provided through Nellis AFB master meter which is also provided by SWGC. The water utilities at each of these sites varies by locality. None of the servicing water utility providers responded to the Sources Sought announcement or returned any response to the LOI submitted to them directly. Market research determined that there was only one servicing utility provider, SWGC, interested in the UESC projects for these sites.

Market research indicates that, given the small size of each of the individual 63rd USARRD sites, and the limited opportunities for energy savings it presents at single locations, to do a UESC that is not grouped, a project would not produce adequate cashflow or savings for the selected utility. A UESC project increases its chances of realizing cost savings in a larger site, where more ECMs can be implemented. If a UESC project is not anticipated to produce adequate cashflow, there would be little interest for a servicing utility to propose on either of the three solicitations.

- b. The notices required by FAR 5.201, Publicizing Contract Actions, will be published prior to release of the three sole source TOs to PG&E, SoCalGas and SWGC. Any proposals received in response to these notices will be considered.

Additional market research was conducted for this amendment from 04 March 2024 through 15 March 2024, and updated on 22 July 2024, for the Concord location in Northern California to determine eligible servicing utilities. The Market Research detailed below depicts the efforts related to vetting the eligible utility at the Concord installation to determine their interest in performing a UESC. PG&E was the only eligible servicing utility in Northern California for the Concord location.

- a. To be eligible to perform a UESC, the utility must be an existing service provider to the installation where the work will be completed. There are a few utility providers (gas, electric, and water) serving the Concord location for Northern California who would be eligible to perform a UESC. The table below includes the service providers for this area.

Contra Costa Water District (CCWD)	Water
Delta Diablo Sanitation (DDS)	Sewer
Pacific Gas & Electric Company (PG&E)	Electricity
Pacific Gas & Electric Company (PG&E)	Gas

- b. A Sources Sought announcement was posted through SAM.gov from 04 March 2024 through 15 March 2024. The servicing water and sewer utility provider (CCWD and DDS) did not respond to the Sources Sought. CCWD and DDS were contacted directly by the UESC Program by phone and email on 15 and 16 July 2024, written responses indicating a lack of interest and/or capability were received from both on 16 July 2024 and 19 July 2024, respectively. The only servicing utility that responded to the Sources Sought with interest in performing a UESC at the Concord location was PG&E. The utility was contacted in

July 2024, to ensure that they could support adding the Concord site to the existing UESC that is in development, and they concurred that adding the site would not impact the current development schedule.

9. **Interested Sources:** PG&E, SoCalGas, and SWGC, are the only servicing utilities that have indicated interest in performing these UESCs. These three utilities are also the only eligible entities who responded to LOI and/or Sources Sought indicating interest in performing a UESC at the sites.

10. **Other Facts:**

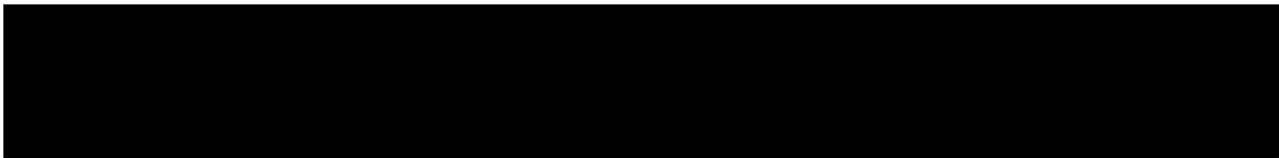
a. Procurement history.

- (1) Contract numbers and dates of all awarded contracts for these same requirements. (N/A) There is no prior procurement for this action.
- (2) The competitive status of these actions. (N/A) There is no prior procurement for this action.
- (3) Authority previously cited if less than full and open competition was used. (N/A) There is no prior procurement for this action.
- (4) If a justification was prepared to support the procurement made before this one, a summary of the contents of paragraph 7 of the justification for that procurement and an explanation of the results. (N/A) There is no prior procurement for this action.
- (5) If any prior contract for this requirement was accomplished using full and open competition, include a detailed explanation of the changed circumstances causing this action to now limit the sources. (N/A) There is no prior procurement for this action.
- (6) An explanation of any unusual patterns that may be revealed by the history, e.g., several consecutive, urgent buys. (N/A)
- (7) If a justification was prepared to support the procurement made before this one, briefly describe the circumstances justifying the procurement and whether there have been any significant changes. (N/A) There is no prior procurement for this action.

- b. Other facts. Subcontractor Competition. PG&E, SoCalGas, and SWGC are required to report through the Electronic Subcontracting Reporting System (eSRS). PG&E, SoCalGas, and SWGC will be required to provide an annual report on how they are utilizing small businesses under this action.

Currently, the project approved for the 63rd USARRD under the initial J&A (CEHNC-23-0019) is in development and the scope of the project is not due to the Government until 22 July 2025; therefore, this work would be added to the existing development process for the 63rd USARRD UESC project.

11. **TECHNICAL CERTIFICATION:** “I certify that the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.”



12. REQUIREMENTS CERTIFICATION: I certify that the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.



13. FAIR AND REASONABLE COST DETERMINATION: I hereby determine that the anticipated cost to the Government for this contract action will be fair and reasonable. The basis of this determination is by price analysis through comparison to the Independent Government Estimates IAW FAR 15.404-1(b)(2)(v), and a comparison of historical pricing information retained by the UESC Program over more than a decade of executing UESCs, IAW FAR 15.404-1(b)(2)(ii). Historical price analysis will include comparing proposed pricing data to historical prices for the same or similar elements, such as project rates, indirect and profit rates, cancellation fee percentages, etc. IAW FAR 15.403-1(b)(3), “The contracting officer shall not require certified cost or pricing data to support any action (contracts, subcontracts, or modifications) but may require data other than certified cost or pricing data as defined in FAR 2.101 to support a determination of a fair and reasonable price, when a commercial product or commercial service is being acquired.”

Lisa L. Steenburn
Contracting Officer

Signature: 

14. CONTRACTING OFFICER CERTIFICATION: I certify that this justification is accurate and complete to the best of my knowledge and belief.

Lisa L. Steenburn
Contracting Officer

Signature: 

Approval

Based on the foregoing justification, I hereby approve the additional [REDACTED] increase in contract capacity for the 63rd U.S. Army Reserve Readiness Division for Northern California, Southern California, Arizona and Nevada, with an estimated total value of [REDACTED] on an other than full and open competition basis pursuant to the authority of 10 U.S.C. 3204(a)(1) as implemented by FAR 6.302-1 "Only One Responsible Source and No Other Supplies or Services Will Satisfy Agency Requirements." Award is subject to the availability of funds, and provided that the services herein described have otherwise been authorized for this acquisition.

[REDACTED]